# I. Politics of New Provinces in Pakistan: A Historical Analysis

This paper discusses the persistent demands for creating new provinces in Pakistan, largely driven by **ethnic and administrative grievances** despite the 18th Constitutional Amendment.

## Core Concepts and History

- **18th Constitutional Amendment (2010):** Granted **provincial autonomy** but failed to address the **socio-political assimilation** of various sub-national identities.
- **Grievances and Federalism:** Pakistan's federation has historically faced threats due to **over-centralization** and the center's monopolistic control over resources, which led to the **disintegration in 1971** (East Pakistan becoming Bangladesh). Products of the asymmetric federal system include **provincial disharmony, uneven resource distribution, economic backwardness**, and **marginalization of sub-national identities**.
- **Key Identity Demands:**
    - **Saraikis (South Punjab):** Emerged as an ethno-regional identity demanding a new province (Saraikistan). The demand is based on **socio-economic disparities** and, alternatively, on **administrative grounds**.
    - **Hazaras (Khyber Pakhtunkhwa - KP):** Primarily **Hindko-speaking** (Hazarawals), their demand for a separate Hazara province was vigorously raised after the **NWFP was renamed as KP** (on ethnic/Pashtoon grounds) under the 18th Amendment.
    - **Mohajirs (Sindh):** Urdu-speaking migrants, mainly in **Karachi and Hyderabad** (Urban Sindh), who began to assert their identity in the 1970s and 80s (forming MQM). They demand a separate province comprising urban Sindh.
    - **Pashtoons (Balochistan):** Demand a separate province in northern Balochistan ("Afghania") or merger with KP.
- **Bahawalpur Province:** An historical princely state with provincial status before its merger into West Pakistan in 1954. A movement to **reinstate its provincial status** exists, separate from the Saraikistan demand.

### Constitutional Procedure and Political Stances

- **Constitutional Procedure (Article 239, Clause 4):** The creation of a new province requires approval by the **respective Provincial Assembly** through a **two-thirds majority** before the bill can be approved by the President.
- **Political Parties' Roles (Politicization):** The issue has been highly **politicized**.
    - **PPP/PML-Q:** Used the Saraiki province issue as a **political stunt** to strengthen their vote bank and counter PML-N.
    - **MQM:** Submitted a bill to the National Assembly for the creation of Hazara and South Punjab provinces to set a **precedent for the division of Sindh** into Sindhi and Mohajir provinces.
    - **PML-N:** Initially rejected the idea at the center but later passed a resolution in the Punjab Assembly for the creation of **South Punjab** and the **restoration of Bahawalpur** province, an act seen by Saraiki nationalists as a political stunt to weaken their movement.
    - **PTI:** Won seats in South Punjab on the commitment of creating the province but was accused of **applying delaying tactics** and providing only a South Punjab Civil Secretariat with **limited powers**.
- **Arguments For New Provinces (Proponents):** Administrative convenience, improved governance, better service delivery, and empowerment of small ethnic identities.
- **Arguments Against New Provinces (Opponents):** Fear that it will **open a Pandora's box**, lead to **fragmentation**, and create issues regarding **political representation** and **resource allocation**.

## II. Provincial Local Government Systems of Pakistan: A Comparative Perspective

This paper analyzes the history and structure of Local Government (LG) systems, emphasizing the shift after the 18th Amendment and the current non-uniformity across provinces.

### Historical Context & 18th Amendment

- **Military vs. Democratic Regimes:** Historically, LG reforms in Pakistan have been initiated by **non-representative military regimes** (Ayub Khan's Basic Democracies

Order 1959, Zia's LGO 1979, Musharraf's LGO 2001). **Democratic regimes** have largely **undermined** these reforms.

- **18th Amendment (2010):** A landmark for devolution; it not only empowered provinces but also made it **obligatory** for them to devolve power to LG institutions (**Article 140A**).
- **Post-2010 Non-Uniformity:** For the first time, the LG system was **not devised from the center**, leading to variations in authority, functions, and fiscal discretion across the four provinces. The LGO 2001 was abandoned in 2010, transferring administrative authority back to **provincial bureaucracy**.

## Comparative Analysis of Provincial LG Acts (Post-2010/2013)

| Feature | Sindh, Baluchistan, Punjab | Khyber Pakhtunkhwa (KP) |
|---|---|---|
| **Structure** | Reverted to the **Urban-Rural Divide** (similar to LGO 1979). | Heavily inspired by **LGO 2001**, establishing a **District Government** as a separate tier, abolishing the rural-urban functional divide at the lowest tier (Village/Neighborhood Councils). |
| **Devolution/Functions** | Retained the divide of **optional and compulsory** functions. Offices of the government are retained under the purview of provincial governments. | **Fully devolves** almost all **functions** and **offices of the government** (including finance and administration) to the District Government. |
| **Administrative Authority** | **Restrained**. The provincial government retains **broad powers** of supervision, inspection, and direction (which is binding). Punjab specifically created separate District **Health and Education Authorities** appointed by the provincial government, centralizing those functions. | **Complete discretionary power** to the elected Nazimeen/District Council over devolved offices. Village/Neighborhood Councils monitor performance of government functionaries. |

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| **Fiscal Devolution** | Limited taxing powers. Local governments are **excessively reliant** on the **Provincial Finance Commission (PFC) Awards** (funds from the Provincial Consolidated Fund). No guarantee on development funds. | Establishes a **Provincial Finance Commission**. **Guarantees** that development funds disbursed to LG will be **not less than 30%** of the total provincial development budget. |
| **Elections** | Direct elections at the **lowest tiers**. | **Direct elections** at **all levels**. |

## Conclusion Points for Exams

- **LG Efficacy and HDI:** The period when LGO 2001 was effective (2000-2007) saw a significant **rise in Pakistan's Human Development Index (HDI)**, suggesting that a functional LG system positively impacts service delivery and development. The crash in HDI increase coincided with the LG system being discontinued (2007-2012).
- **Continued Centralization:** The current Acts are still largely **differential to provincial governments**, retaining powers to regulate functions, determine resource distribution, and suspend LGs, thereby potentially offsetting local democracy.
- **Metropolitan Governance:** Large metropolitan areas like Karachi and Lahore are treated as typical local governments, with crucial functions (e.g., Water, Development Authorities) retained by the provincial government, which can **restrain metropolitan growth**.
- **Party-Based Elections:** The shift to **party-based elections** is expected to help create **political linkages** between provincial and local tiers, giving mainstream parties a stake in supporting local democracy.